

## 26SMCP00073 26SMCP00073

County: los-angeles

Division: Civil Law and Motion

Department: 834

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Case Number: 26SMCP00073 Hearing Date: August 6, 2026 Dept: 834

Superior Court of California

County of Los Angeles

Department 834

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JOHN DOE,

Petitioner(s),

vs.

REGENTS

OF THE UNIVERSITY OF CALIFORNIA,

Respondent(s).

Case No.:

26SMCP00073

Hearing Date:

August 6, 2026

[TENTATIVE]

ORDER RE: MOTION FOR LEAVE TO PROCEED UNDER PSEUDONYM

Fictitiously named petitioner John Doe ("Petitioner") seeks leave to proceed in this action as John Doe.

The unopposed motion is denied.

I.

Background

1.

Factual Background

In or around January 2018, the University of California, Los Angeles ("UCLA") Director of Administrative Policies & Compliance received a whistleblower report regarding unauthorized fees charged to international postgraduate Orthodontics students. (Osher Decl., ¶ 3.) An investigation by Hueston Hennigan, LLP ("Hueston") determined two students paid \$30,000 annually above the amount paid by other residents, and that money went to a fund established by Dr. Eric Kang Ting ("Ting"). (Osher Decl., ¶ 3, Ex. 1 at p. 1.) Hueston concluded Ting and two other professors arranged for these increased fees, representing them to UCLA as donations. (Osher Decl., ¶ 6, Ex. 1 at pp. 1-3.) Ting used the funds to purchase equipment for his lab and his spouse's lab. (Osher Decl., ¶ 7, Ex. 1 at p. 28.)

Hueston's report indicated Ting made these anonymous reports intending to damage the Associate Dean's professional prospects. (Osher Decl., ¶ 7, Ex. 1 at p. 50-56.)

Ting published news articles disparaging Petitioner and his colleagues. (Petitioner Decl., ¶ 14, Ex. A; Osher Decl., ¶ 8-9.) In those articles, Ting references the research subject to the ORI investigation. (Osher Decl., ¶ 9.)

On August 27, 2025, RPI submitted a California Public Records Act ("CPRA") request to respondent Regents of the University of California ("Respondent") for, inter alia, "All records concerning investigation by UCLA into allegations made in or around 2018 that UCLA Dentistry faculty members, professors, and/or associate deans or deans published manipulated data, including all records reflecting any conclusions reached therein." ("Request

No. 4”) (Osher Decl., ¶ 11, Ex. 2.)

On or around January 8, 2026, UCLA's Director of Information Practices notified Petitioner he was identified as a respondent in a report subject to disclosure under CPRA. (Osher Decl., ¶ 12, Ex. 3) While witnesses and complainants' identities would be redacted, UCLA informed Petitioner his name, as the respondent, would be disclosed. (Osher Decl., ¶ 12, Ex. 3.)

On or around January 14, 2026, Petitioner objected to the release of the investigative report on him, arguing that the records were exempt from CPRA disclosure as part of an ongoing investigation, subject to confidentiality under Title 42 of the Code of Federal Regulations, Part 93, exempt from CPRA disclosure as confidential personnel files or similar files, and exempt from CPRA disclosure because the public interest in nondisclosure outweighs the public interest in disclosure. (Osher Decl., ¶ 13, Ex. 4.)

2.

#### Procedural History

On February 3, 2026, Petitioner filed this writ action against the Respondent, naming RPI as real party. A proof of service filed February 17, 2026 shows Petitioner served RPI with the summons and petition on February 10, 2026. Additionally, a notice of acknowledgment and receipt filed March 19, 2026 shows RPI received the summons and petition by March 16, 2026. On April 30, 2026, RPI filed its answer to the petition. On May 27, 2026, RPI filed its first amended answer. On June 4, 2026, Respondent filed its answer to the petition.

On May 8, 2026, the parties stipulated to consolidate the hearing on a motion for preliminary injunction in this case with the hearing on a motion for preliminary injunction in related case no. 26STCP00428. On June 24, 2026, the Court granted preliminary injunctions in both cases.

On June 12, 2026, Petitioner filed the instant motion. On July 24, 2026, real party Cohen Williams LLP (“RPI”) filed a statement of non-opposition to the instant motion. To date, no party has filed an opposition. Any opposition was due no later than July 22, 2026. (Code of Civil Procedure [“CCP”] § 1005(b).)

II.

## Discussion

Petitioner seeks leave to proceed as “John Doe.” Petitioner argues he has a significant constitutional privacy interest in his employment record with UCLA.

“¿[A] party may preserve his or her anonymity in judicial proceedings in special circumstances when the party’s need for anonymity outweighs prejudice to the opposing party and the public’s interest in knowing the party’s identity.’¿” (Doe v. Lincoln Unified School Dist. (2010) 188 Cal.App.4th 758, 767 [“Lincoln USD”], quoting Does I thru XXIII v. Advanced Textile Corp. (9th Cir. 2000) 214 F.3d 1058, 1068 [“Advanced Textile”].) A court may permit plaintiffs to use pseudonyms in three situations: “(1) when identification creates a risk of retaliatory physical or mental harm [Citation]; (2) when anonymity is necessary ‘to preserve privacy in a matter of sensitive and highly personal nature’ [Citation]; and (3) when the anonymous party is ‘compelled to admit [his or her] intention to engage in illegal conduct, thereby risking criminal prosecution.’¿” (Advanced Textile. at 1068.)

Where the request for anonymity is based on the purported need “to preserve privacy in a matter of sensitive and highly personal nature,” the proper test is whether “the party’s need for anonymity outweighs prejudice to the opposing party and the public’s interest in knowing the party’s identity.” (Ibid.; Lincoln USD at 767.) “Outside of cases where anonymity is expressly permitted by statute, litigating by pseudonym should occur ‘only in the rarest of circumstances.’¿” (Department of Fair Employment and Housing v. Superior Court of Santa Clara County, (2022) 82 Cal.App.5th 105, 111-12 [“Department Fair Employment and Housing”].) “In deciding the issue the court must bear in mind the critical importance of the public’s right to access judicial proceedings.” (Ibid.)

Petitioner has a privacy interest in the investigative report he seeks to protect from CPRA disclosure. (Associated Chino Teachers v. Chino Valley Unified School Dist. (2018) 30 Cal.App.5th 530, 541 [“Chino Teachers”] [disclosure of results of investigation into misconduct would compromise employee’s significant privacy interest].) Petitioner also relies on Bakersfield City School District v. Superior Court (2004) 118 Cal.App.4th 1041. While the Court of Appeal in that case ultimately ordered disclosure of the investigation complaint, it reaffirmed that personnel records may fall

within CPRA's privacy exemption when disclosure would constitute an unwarranted invasion of personal privacy. (Id. at 1045.)

These authorities, however, do not establish a public employee's privacy interest in concealing his identity from the public. It is not clear from Petitioner's showing why protection of his identity is necessary. His status as a public employee is itself public, and he identifies no privacy interest tied to shielding that fact. Nor has he demonstrated harm from public disclosure of Ting's accusations; according to Petitioner's own evidence, Ting has already publicized those allegations. (Osher Decl., ¶¶ 8–10.)

A motion to proceed under a pseudonym is analogous to a motion to close the courtroom or seal a court record. (Department Fair Employment and Housing, *supra*, 82 Cal.App.5th at 111.) Courts will not seal records that are already public. (H.B. Fuller Co. v. Doe, (2007) 151 Cal.App.4th 879, 898 ["It should go without saying that there is no justification for sealing records that contain only facts already known or available to the public."].) Similarly, courts have rejected invasion of privacy actions on the basis that "[a] matter that is already public or that has previously become part of the public domain is not private. (Sipple v. Chronicle Publishing Co. (1984) 154 Cal.App.3d 1040, 1047, 201 Cal.Rptr. 665.)" (Moreno v. Hanford Sentinel, Inc. (2009) 172 Cal.App.4th 1125.) The same principle applies here. Petitioner cannot assert an overriding privacy interest in anonymity while acknowledging his involvement has already entered the public domain.

Petitioner also argues his identity as a witness in the related ongoing federal academic investigation must be protected. This argument fails for the same reasons: his identity as a witness to the investigation has been publicized. Moreover, Petitioner specifically alleges his identity will be used by Ting to interfere with the investigation, but every indication in the evidence and arguments before this Court show Ting has always been aware of Petitioner's status as a witness (and subject) of all relevant investigations. (E.g. Osher Decl., ¶¶ 4-6, 8-10; Mot. at 2-5.) Even assuming Ting were unaware, Petitioner offers no explanation as to how Ting could use knowledge of his identity to compromise any investigation. (See Mot. at 8-10.)

Accordingly, Petitioner has not demonstrated a qualifying privacy interest and is not entitled to proceed under a pseudonym.

III.

#### Conclusion

Petitioner has not met his burden to show a privacy interest in his identity as petitioner in this action. The motion to proceed under a pseudonym is DENIED.

Date: August 6, 2026

HON. TIANA J. MURILLO

#### PLEASE TAKE NOTICE:

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#### Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

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#### If

a party intends to submit on this tentative ruling, the party may send an email to the court at [email protected] with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

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#### Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

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#### If

the parties neither submit nor appear at hearing, the court may take the matter off calendar or adopt the tentative ruling as the order of the court. After the court has issued a tentative ruling, the court may prohibit the withdrawal of the matter without leave.